



Essential Elements of a State



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The State Must, Therefore, Possess the Essential Elements of the State are-

**Population,
Territory
Government
Sovereignty**

1. Population is Essential Element of State.

Two conclusions flow from the discussion on the meaning and nature of the state:

(I) that the State is a human institution the product of man's gregarious nature and the result of necessities of human life, and

(2) population and land are the starting point of any study of man in his organized groups. It is the people who make the State; without them, there can be none. But the population must be large enough to make a State and sustain it.

The members of one single-family do not make a State. There should be a series of families. No limit, however, can be placed on the number of people constituting the State. The difference in population, other things remaining the same, does not make any difference in the State's nature, although opinions as to its size have varied from time to time. Plato and Aristotle put definite limitations on the population of the State.

Their ideal was the Greek City-State, like Athens and Sparta. Plato fixed the number at 5,040 citizens. Aristotle held that neither ten nor a hundred thousand could make a good State; both these numbers were extremes. He laid the general principle that the number should be neither too large nor too small. It should be large enough to be self-sufficient and small enough to be well-governed. Rousseau, the high priest of direct democracy, determined 10,000 to be the State's ideal number.

The Modern Tendency is in favor of States with a huge population. It is believed that the workforce of the State must swell as the population is the sinews of war and power. Hitler, Mussolini's government, gave bounties to couples producing children above a given minimum issue less, and unmarried persons were taxed. The erstwhile Soviet Union managed the grown other population.

The 1936 Constitution guaranteed State aid and honors bestowed on members of large families and unmarried mothers. In India, the problem is to check the ever-growing population due to the wide disequilibrium between the population and the available means of production. China has a system of incentives and disincentives to observe a one-child family norm.

But the size of the population is no criterion of the State. Monaco and China are entities with equal statehood status, although the disparity in both the States' populations is significantly marked. Similarly, an increase or loss in population makes no difference in its Statehood.

Though no limit, either theoretical or practical, can be placed on a state's population, yet are population must be sufficient to maintain a state organization, and it should not be more than what the State's territorial resources are capable of supporting.

But behind all these quantitative factors lie qualitative elements in evaluating the problem of a state's population. The population cannot be reckoned in mathematical terms. The kind of people they are matters no less than their numbers. Aristotle rightly said that a good citizen makes a good State and a bad citizen a bad State. A good citizen must be intelligent, disciplined, and healthy. Healthy citizens are the State's health, for disease diminishes intelligence, capacity for work, energy, and vitality; it makes for poor production, laziness, and lethargy.

Similarly, good citizens will not allow religious or political differences to destroy the State's unity and security. The indie people have yet to learn the requisites of good citizenship, though, in numbers, they stand in the front row.

2. Territory.

Some writers ignore territory as an element of the State.

Leon Duguit says,

"The word State designates the rulers or else the society itself in which the differentiation between rulers and ruled exists and in which, for that very reason, a public power exists"

August is chiefly interested in the differentiation between rulers and ruled, which occurs in almost all human societies, large or small, primitive or civilized. Then he tersely says that territory is not an indispensable element in the formation of a State.

Sir John Seeley, too

“Does not regard territory as an essential attribute of the State.”

If a society is held together, he maintains, by the principle of government, it constitutes a State, and Political Science should not concern itself only with the so-called civilized society. Why should we not say that States are found in the deserts of Arabia and in other regions where the soil is unfruitful and discourages fixed settlement and agriculture?

W.W. Willoughby says,

“The State itself then is neither the people, the government, the Magistracy, nor the Constitution. Nor is it indeed the territory over which its authority extends. It is the given community of given individuals, viewed in a certain aspect, namely, as a political unity.”

But such views are rarely encountered now. They have been rejected, not on theoretical grounds, but because of certain practical considerations. Even Duguit admits that in practice, there can be no State without a fixed territory. Just as every person belongs to a State, so does every square yard of earth.

There is no State without its proper territory, large or small, and no territory that is not part of some State, large or small. The Andes, far as we personally are concerned, is our connection with a particular territory that normally creates our state's membership. I am a citizen of India because I was born there or because my father was born there.

My fellow citizens are my father's residents, and it is this sharing of the same territory that creates most of our common interests. Living together on a common land welds the people in the continuity of interests. It is a powerful incentive to feel Love for the territory and inculcates the spirit of patriotism, which has been described in all ages and stages as a supreme Virtue of man some reverentially call their country fatherland. In contrast, others call it “motherland” and invoke their or her blessings and vow to safeguard its territorial integrity. The State's territorial integrity is the most cherished sentiment of oneness and the object of patriotism, and both together for its permanent existence.

Moreover, international relations conduct would be seriously impeded without the requirement of a defined territory. All authorities on [International Law](#) are now agreed that a fixed territory must be a condition of Statehood. People and government are not enough. The occupation of a fixed territory is also essential. Otherwise, the State could not be readily identified and held to account if one attempts to conquer or violate another's integrity.

Land, water, and airspace within the defined territorial area comprise the territory of the State. It embraces the State's geographical limits, its rivers and lakes, the natural resources it has, and the airspace above. Generally, the territorial limits extend to a distance of three miles (4.4 kilometers) of the sea from the coast. However, in practice, the maritime jurisdiction is sought to be extended further by the States. As a result of the extensive developments in aviation, radio communication, and space flights, the importance of territorial [sovereignty](#) of the States over airspace has, in recent times, assumed a vital role.

There are at present 185 States that are members of the United Nations. Along with such giants, as China, India, and the United States there are such pigmies as Monaco, Renitria, and [Luxembourg](#) independent States. No limit, like population, can be put on the State's territory, although opinion has differed on the political utility of a small and a big State.

Plato drew a close analogy between a math-formed man's stature and the size of a normal State. Aristotle was also favorably inclined toward the State of moderate size. Rousseau took his one from Plato's analogy and set definite limits to the size of a well-governed State. He maintained that in genuine State is proportionately stronger than a large one Montesquieu said that that is a necessary relation between the size of the State and the government's aim best adapted to it.

A popular government, it is claimed, can be applied only to a small State. In a small State, the population is limited, and the people have the best opportunity to assemble and express their opinions. They can exercise vigilance, which is the price of democracy, far more effectively when the State is small.

De Tocqueville said the history of the world offers no instance of a great nation retaining a republican government for a long series of years. It may be advanced with confidence that a great republic's existence will always be exposed to far greater dangers than that of a small one, as all the passions that are most fatal to republican institutions spread with an increasing territory. At the same time, the virtues which maintain their dignity do not augment in the same proportion.

Direct democracy can only flourish in a small State, and Switzerland is cited as a living example. A small State, it is further argued, evinces more unity and greater patriotism. It is a compact class of people who live a corporate life. Each stand for all, and all stand for each, concentrating their energies collectively in promoting common welfare.

The small States, on the other hand, are relatively less secure. They fall easy prey to bigger States, which are usually aggressive, and history is full of examples of many a naked aggression. Hitler in no time trampled Poland and other Central European countries. Japan did the same in the Far East.

The recent opinion is invariably in favor of the bigger States. Trietschke, the German philosopher, in his work on "Politics" (Politik), published a little before World War-I, Declared that "the State is power," and it is a sin for the State to be small. He said that even the idea of a small State is

ridiculous because of its weakness, which in itself is reprehensible because it masquerades as strength.

Economic resources cannot be left out of the account while evaluating the utility of small States. The modern tendency is towards planning and self-sufficiency. It can only be realized when the Territory of the State is large enough to abound in various natural resources.

The scale of production determines the mode of production. Large scale production is always accompanied by the industry's rationalization to advantageously compete in the international market, besides commanding an extensive and stable domestic market. After all, the economic conditions of a State determine the political stature of its people. In this competing world, a large number of small States endanger international peace.

The improved political devices run down the argument that small States are best suited for democracy. The representative system, growing familiar to Europe from the twelfth and thirteenth centuries and now taking roots in Asia and Africa, has vastly extended the scope of democratic institutions.

Federalism has also proved its value. Federalism has reconciled local autonomy with national unity, diversity with uniformity, and it has enabled local communities to retain much of their individual character. Yet, they co-operate for certain purposes in a single State.

The Big States, according to Trietschke, "are more adapted than small ones to promote the development of intellectual culture." The resources which a big State possesses, the talent it can command, and the greater genius it can produce immensely help the cultural advancement of a nation and consequently its civilization.

Lord Acton, a great admirer of big States while summing up the defects of small States, says that they isolate and shut their inhabitants, to narrow the horizon of their views and to dwarf in some degree the promotion of their ideas. Public opinion cannot maintain its liberty and power in small dimensions. The currents that come from large continuities sweep over a contracted territory.

Like the minute communities of the Middle Ages, these States serve a purpose by constituting partitions and securities of self-government in the larger States. Still, they are impediments to society's progress, which depends on the mixture of races under the same government.

The principles of representation and federalism, operating in the transformed mechanical environment, have invalidated some of the political premises of the past and public opinion today veers around big States. Yet large and small States continue to be discussed. But as long as power remains the primary factor in international politics, States must either be large or not attempt to play an important political role.

However, it must be emphasized that there should be some proportion between the population and territory of the State. If there is a disproportionate disparity between the two, the State must suffer

from all those economic and political disabilities which are natural to such a situation. The State, in brief, must be viable or capable of maintaining a separate independent existence.

This can be possible only if it has adequate area and resources to support the increasing population and adequately meet the needs of defense and an efficient administration. The modern demands for an efficient and up-to-date defense and administration are ever-growing and consume a pretty big slice of all States' resources.

3. Government.

The purpose of living together cannot be realized unless they are properly organized and accept certain rules of conduct. The agency created to enforce such rules of conduct and to ensure obedience is called government. Government is the focus of the common purpose of the people occupying a definite territory. Through this medium, common policies are determined, common affairs are regulated, and common interests are promoted.

Without government, the people will be just a babel of tongues with no cohesion and means of collective action. They would divide themselves into groups, parties, and even warring associations, creating conditions of utter chaos and even civil war.

Therefore, there must be a common authority and a consequent order wherever people live. It is the prerequisite of human life, and, as such, the government is an essential element of the State. The State cannot exist without a government, no matter what form a government may assume.

4. Sovereignty.

The sovereignty [of the State](#) is its most essential and distinguishable feature. As people inhabiting a definite portion of territory and having a government do not constitute a state. They must be internally supreme and free from external control. The sovereignty of the State has two aspects, internal sovereignty, and external sovereignty. Internal sovereignty is the State's monopoly of authority inside its boundaries.

This authority cannot be shared with any other State, and none of its members within its territory can owe obedience to any other State. If the State admits no rival within its own territory, it logically follows that it has no authority outside its own territory.

Each State is independent of Other States. Its will is its own, unaffected by the will of any other external authority. This clarifies the meaning of external Sovereignty.

Every State, their fore must have its population, a definite territory, a duly established government, and Sovereignty. The absence of any of these elements denies It the status of Statehood. Accordingly, the term "State" is generally used for the twenty-five units of the Indian Republic. Any one of the fifty States, which make the United States of America, is a misnomer.

None of them is sovereign. They possess the elements of population, territory, and government. They are autonomous in their own spheres of jurisdiction, But [autonomy](#) is not sovereignty, and lack of sovereignty does not entitle them to be ranked as States.